

AMENDMENT NO. 1 TO MASTER SERVICE AGREEMENT

AMD-2023-EMW-495 | Amending MSA-2022-LWD-636

Document Type: Amendment to MSA	Document ID: AMD-2023-EMW-495
Effective Date: December 22, 2023	Version: 1.0
Party A: VertexNexus Systems Ltd.	Party B: PulseApex Technologies Pvt. Ltd.

BACKGROUND

This Amendment (AMD-2023-EMW-495) is dated December 22, 2023 and amends MSA-2022-LWD-636. All capitalised terms retain their meaning from the MSA. All other terms remain in full force except as expressly modified herein.

AMENDMENT 1: EXPANDED GEOGRAPHIC COVERAGE

1.1 **[OBLIGATION]** VertexNexus Systems Ltd. shall ensure compliance with PIPL (China) and all applicable privacy legislation in South Africa and UAE within 74 days of this Amendment's effective date.

AMENDMENT 2: DATA RETENTION PERIOD

2.1 **[OBLIGATION — CONFLICT POINT C4]** Section 3.1 of DPA-2024-SLQ-907 is hereby amended. The post-termination data retention period is extended from **18 months** to **42 months** to comply with mandatory retention requirements in South Africa and UAE.

2.2 VertexNexus Systems Ltd. shall update all data retention schedules within 34 days of this Amendment's effective date.

AMENDMENT 3: INSURANCE REQUIREMENTS

Insurance Type	Minimum Coverage	Effective Date
Professional Indemnity (E&O)	USD 5M/occurrence	January 11, 2024
Cyber Liability	USD 12M/occurrence	January 11, 2024
General Liability	USD 3M/occurrence	January 11, 2024
Workers Compensation	Statutory limits per jurisdiction	Immediately

3.1 **[OBLIGATION — DEADLINE]** Certificates of insurance naming PulseApex Technologies Pvt. Ltd. as additional insured must be provided by January 11, 2024.

AMENDMENT 4: MODIFIED RENEWAL NOTICE PERIOD

4.1 **[OBLIGATION — CONFLICT POINT C7]** Section 2.2 of MSA-2022-LWD-636 is amended. The non-renewal notice period is extended from **60 days** to **105 days** given expanded geographic scope. **Updated renewal notice deadline: November 28, 2025.**

AMENDMENT 5: ADDITIONAL COMPLIANCE CERTIFICATIONS

5.1 **[OBLIGATION — DEADLINE]** VertexNexus Systems Ltd. shall obtain PCI DSS Level 1 compliance by **June 07, 2024** and ISO 27701 certification by **June 17, 2024**.

AMENDMENT 6: BUSINESS CONTINUITY

6.1 **[OBLIGATION — DEADLINE]** A Business Continuity Plan (BCP) and Disaster Recovery Plan (DRP) must be submitted by **January 30, 2024**.

6.2 **[OBLIGATION]** Annual DR test required. Tier 1 systems: RTO <= 2 hours, RPO <= 2 hour(s).

PRECEDENCE

In the event of conflict between this Amendment and MSA-2022-LWD-636 or any SOW or DPA, this Amendment prevails to the extent of the inconsistency, unless a specific SOW expressly states its provisions take precedence.

SIGNATURE PAGE

FOR VertexNexus Systems Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

FOR PulseApex Technologies Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____